THE AMERICAN BAR ASSOCIATION AND THE 1979 MOON TREATY: THE SEARCH FOR A POSITION

*Carl Q. Christol**

1. Introduction

Professional interest, as reflected in reports produced by concerned sections of the American Bar Association, has been directed toward the UN-sponsored Agreement Governing the Activities of States on the Moon and Other Celestial Bodies of December 5, 1979.[1] The Agreement, generally referred to as the Moon Treaty, is the fifth international space law agreement that has resulted from the rigorous, consensus-based, negotiating process of the UN's Committee on the Peaceful Uses of Outer Space (COPUOS). The first four have entered into force. The United States is a party to each of them.

The Moon Treaty will enter into force following the deposit with the Secretary-General of the United Nations of five ratifications. At the time of this writing the agreement has been signed by Austria, Chile, France, Guatemala, Morocco, The Philippines, and Romania.

The worth of the agreement, which had resulted from a careful assessment at the UN lasting from 1970 down to 1979, and which was considered sufficient to merit the unanimous approval of the General Assembly, has come under scrutiny in the United States. Attracting major attention was the establishment of the principle of the Common Heritage of Mankind (CHM) as a new substantive area of international space law. Thus, Article 11, par. 1 of the agreement provided that "The Moon and its natural resources are the common heritage of mankind, which finds its expression in the provisions of the Agreement and in particular in paragraph 5 of this article."[2]

In the process of writing the Moon Treaty the negotiators recognized that they were introducing a new principle into international space law. Thus, without defining the principle, as it applied to the Moon and to other celestial bodies, and to their natural resources, the agreement identified the substantive elements of the principle. This was done by way of enumerating the purposes to be achieved at a future and unspecified date by a new international legal regime, including appropriate procedures. The formation of the new regime and of the accompanying institutional processes was made dependent on the fact that the exploitation of the foregoing resources was about to

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*Professor of International Law and Political Science, University of Southern California.

[1]U.N. Doc. A/34/664, 12 Nov. 1979; 18 *ILM* 1434 (Nov. 1979).

[2]*Ibid.* The negotiating history of this provision, including wide-ranging alternative proposals, and an assessment of its meaning is contained in my "The Common Heritage of Mankind Provision in the 1979 Agreement Governing the Activities of States on the Moon and Other Celestial Bodies," 13 *The Int'l L.* 429 (1980).

become feasible.[3] Thus, Article 11, par. 7 of the agreement indicated that, pursuant to the CHM principle, emphasis was to be placed on the resources of the area. Specifically, the natural resources were to be developed in an orderly and safe manner. The resources were to be managed rationally. Opportunities were to be expanded for the use of the resources. It was also stipulated in par. 7 (d) that one of the main purposes of the regime and procedures was to secure "An equitable sharing by all States Parties in the benefits derived from those resources, whereby the interests and needs of the developing countries, as well as the efforts of those countries which have contributed either directly or indirectly to the exploration of the Moon, shall be given special consideration."[4]

Article 11 was consistent with the terms of Article 1 of the 1967 Treaty on Principles Governing the Activities of States in the Exploration and Use of Outer Space, Including the Moon and Other Celestial Bodies.[5] That Article, dealing only with the specified areas, and not with their natural resources, provided for the free and equal exploration, use, and exploitation of the given areas. It also provided for free access to all areas of celestial bodies, including the Moon.

As a result of the terms of the foregoing international agreements and their negotiating histories, it has been suggested that the CHM principle is based on the following considerations, and that they will have to be taken into account in its specific implementation. These include (1) the areas, following the *res communis* doctrine applicable to the high seas, are not the subject of appropriation; (2) a system of management is to be installed which would be concerned for environmental protections, for the needs of future generations, and for a sharing of benefits pursuant to the formula of equitability stated in par. 7 (d); (3) the area and its natural resources are to be used for peaceful purposes; and, (4) since, the area and its resources are to be subject to free and equal exploration, use, and exploitation, property rights are not to apply to the area and are to apply only to resources removed from their original "in place" location. This follows the provision of Article 11, par. 3 of the Moon Treaty, which states "Neither the surface nor the subsurface of the Moon, nor any part thereof or natural resources *in place,* shall become the property of any State, international intergovernmental or non-governmental organization, national organization or non-governmental entity or of any natural person."[6] In sum, the CHM provisions of the Moon Treaty are to be implemented through the formation of a future international legal regime pursuant to the foregoing sharing formula so that benefits derived from the resources will go both to States possessing the capabilities of exploitation and also to other States. Until such a regime and the attendant appropriate procedures have been brought into being the traditional *res communis* principle will continue to be operative. The analogy of the freedom of the high seas will apply.

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[3]Christol, "An International Regime, Including Appropriate Procedures, for the Moon: Article 11, Paragraph 5 of the 1979 Moon Treaty," in *Proceedings of the 23rd Colloquium on the Law of Outer Space* 139 (1981).

[4]*Supra* note 1.

[5]18 UST 2410; TIAS 6347; 610 UNTS 205. The Treaty entered into force for the United States on October 10, 1967. It is now binding on about 80 States.

[6]*Supra* note 1.

Following the approval of the agreement by the General Assembly in 1979, a number of assertions were put forward as to its meaning and operational effect. Among these were: (1) that the Treaty contained a moratorium provision that would prevent the exploitation of the Moon and celestial body resources pending the negotiation of the CHM regime; (2) that the agreement contained provisions that would prevent the free-enterprise system from engaging in exploitative activities; (3) that the agreement—as a consequence of a commonality of voting outlooks on the part of the Socialist States and the developing countries—served only the interests of such States; and, (4) that the agreement had departed from the central mandate of the 1967 Principles Treaty, with the result being that States could establish sovereign rights in the areas and resources of the space environment, e.g., outer space, per se, the moon, and other celestial bodies. Concerns such as these, among others, have resulted in academic, political, and professional assessments of the terms and objectives of the proposed treaty. Important studies have been published by the Senate Committee on Commerce, Science, and Transportation.[7] The same committee's Subcommittee on Science, Technology, and Space conducted detailed hearings on the proposed treaty.[8]

Two sections of the American Bar Association, namely the Section of International Law through its Committee on Aerospace Law, and the Section of Natural Resources Law reviewed the proposed agreement in 1980. On April 18, 1980 the Section of International Law affirmatively recommended to the House of Delegates of the American Bar Association that the U.S. Senate be urged to give its advice and consent to the ratification of the agreement subject to four understandings and declarations in the instrument of ratification. In addition to its recommendation the Section of International Law submitted a detailed report in which it analyzed the purposes and provisions of the agreement. The Section affirmed its belief that "the understandings and declarations suggested . . . should help guide and protect the position of the United States in any future negotiation of an international resources regime, and should allay concerns that the United States is directly or indirectly restricting its right to engage in or authorize the use of the natural resources of the Moon, including their commercial or other exploitation."[9]

2. *The Initiative of the ABA Section of International Law*

The Section of International Law took into account the then existing international law of outer space when it put forward its proposed understandings and declarations. In the first of these the Section called attention to the terms of Articles 1 and 6 of the 1967 Principles Treaty which enable both governmental and non-governmental entities to engage in the free and equal exploration, use, and exploitation of outer space, the

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[7]Senate Committee on Commerce, Science, and Transportation, Agreement Governing the Activities of States on the Moon and Other Celestial Bodies, Parts 1 through 4, 96th Congress, 2nd Session, (1980).

[8]The Moon Treaty, Hearings before the Subcommittee on Science, Technology, and Space of the Senate Committee on Commerce, Science, and Transportation, Serial No. 96-115, 96th Congress, 2nd Session, (1980); cited hereafter as *The Moon Treaty*.

[9]Section of International Law, American Bar Association, Report to the House of Delegates 10 (1980), reprinted in *The Moon Treaty*, *supra*, note 8 at 76-81.

Moon, and other celestial bodies. The first understanding also stated in modified form the understanding attached by the U.S. Senate in 1967 to Article 1 of the Principles Treaty. The Senate had indicated that "Nothing in Article 1, paragraph 1 of the Treaty diminishes or alters the right of the United States to determine how it shares the benefits and results of its space activities."[10] This was converted by the Section in 1980 to read that "It is the understanding of the United States that nothing in this Agreement in any way diminishes or alters the right of the United States to determine how it shares the benefits derived from exploitation by or under the authority of the United States of natural resources of the Moon or other celestial bodies."[11] This proposal was relevant to the proposed Moon Treaty, since it had made reference to benefits derived from natural resources. It was particularly germane since the 1967 Principles Treaty had not made specific reference to natural resources.

In the second of the Section's understandings, specific reference was made to property rights in such natural resources as had been taken into possession. It stipulated that they are "subject to the exclusive control of, and may be considered as the property of, the State Party or other entity responsible for their extraction, removal or utilization."[12] This was designed to focus attention on the right to establish property rights in the resources removed from their "in place" locations. This right had been established in Article 11, par. 3 of the agreement. This paragraph constituted a disavowal of efforts by the Soviet Union during the negotiations to avoid the establishment of property rights in certain aspects of the Moon and its natural resources. The proposed understanding captured both the terms of the agreement and the sense of the negotiating history.[13] The understanding was directed at allaying the concerns that had emerged from allegations concerning restrictions on free-enterprise opportunities in Moon and celestial body activity.

The third Section understanding dealt specifically with the CHM provision of Article 11 of the Treaty. Paragraph 1 provided that "The Moon and its natural resources are the common heritage of mankind, which finds its expression in the provisions of this Agreement and in particular in paragraph 5 of this article."[14] This had been introduced both to establish the principle and also to limit the CHM principle to the Moon and other celestial bodies. Thus, this CHM principle was not to be confused with the law of the Sea negotiations, which in Article 136 of the August 27, 1980 Draft Convention on the Law of the Sea (Informal Text), as well as prior drafts, had made references to a common heritage of mankind principle.[15] Thus, the International Law Section explicitly indicated that the Moon Treaty's reference to the CHM was to be based on the

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[10]Treaty on Outer Space, Executive Rep. No. 8 to Accompany Senate Ex. D., 90th Congress, 1st Session 4 (1967).

[11]*Supra* note 9, at 2.

[12]*Ibid.*

[13]Christol, *supra*, note 2, at 470.

[14]*Supra* note 1.

[15]U.N. Doc. A/CONF.62/WP.10/Rev. 3 (27 August 1980).

provisions of the Moon Treaty "and not on the use or interpretation of that term in any other context."[16]

The Section, in order to prevent charges that the terms of the Moon Treaty might be in conflict with Articles 1 and 2 of the 1967 Principles Treaty, stated that recognition of the CHM principle also constituted recognition "(i) that all States have equal rights to explore and use the Moon and its natural resources, and (ii) that no State or other entity has an exclusive right of ownership, property or appropriation over the Moon, over any area of the surface or subsurface of the Moon, or over its natural resources in place."[17] In this understanding the Section also took account of the provisions of Articles 12 and 15 of the Treaty. Following the language of these Articles, and in keeping with the documented, negotiating history of the treaty, the Section made it a matter of record that these provisions meant that parties "retain exclusive jurisdiction and control over their facilities, stations and installations on the Moon, and that other States Parties are obligated to avoid interference with normal operations of such facilities."[18]

The extent to which the Section considered it necessary to formulate the foregoing understanding was indicative of its concern with certain observations that had been circulated respecting the operation of the free-enterprise system in the exploitation of natural resources. Since the intent and purpose of the Moon Treaty demonstrably was written in such a manner as to allow for the application of the free-enterprise system by private entrepreneurs, this understanding was based upon a superabundance of caution on the part of the Section.

In its final understanding the International Law Section placed emphasis on the future exploitation of the natural resources of the Moon and other celestial bodies. In this understanding the Section endeavored to make it clear that the proposed treaty was dealing with two time periods. The first, or pre-Article 11, par. 5 time period, would allow for the application of the *res communis* principle to the exploitation of the natural resources of the Moon. Pending the establishment of such new legal regime, with its new appropriate procedures, the Section made it clear that until the indicated eventualities had come about that there would be no prejudice to "the existing right of the United States to exploit or authorize the exploitation of those natural resources."[19] In this connection the Section made specific the previously well-established fact that "No moratorium on such exploitation is intended or required by this Agreement."[20] The Section also considered it appropriate to specify that, while the conduct of the United States would have to be compatible with the terms of Article 6, par. 2 and Article 11, par. 7, that the United States should reserve "to itself the right and authority

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[16]*Supra* note 9, at 2.

[17]*Ibid.*

[18]*Ibid.*

[19]*Ibid.*

[20]*Ibid.*

to determine the standards for such compatibility unless and until the United States becomes a party to a future resources exploitation regime."[21]

The second time period related to the negotiation of the regime rather than to the fact of exploitation pending its creation. In this the Section agreed upon an explicit caveat that had been well documented during the negotiating history of the proposed treaty. The caveat stated that, in accepting the obligation to engage in good faith negotiations for a future regime, the United States was not agreeing to "any particular provisions which may be included in such a regime; nor does it constitute an obligation to become a Party to such a regime regardless of its contents."[22] Although it would appear to be self-evident that the United States would possess such an option even in the absense of the proposed understanding, the fact that it was put forward was some evidence of the manifest concern that criticisms of the treaty-making process might have gained some support.

Nonetheless, in the minds of some observers the use of well-intentioned and well-considered understandings and declarations contained some risks. Even where the process is legitimately employed, it invites other States to file their own special interpretations. This can produce a splintering effect with a resultant loss of the general agreement evidenced in the terms of the agreement and in its negotiating history.

3. The Concerns of the Section of Natural Resources Law

In this case the position taken by the Section of International Law undoubtedly served a useful purpose. A record was made, which was to be examined critically by the Section of Natural Resources Law. That Section, which has long been identified with a concern for the exploitation of minerals, including the manganese nodules located on the deep seabed and ocean floor, prepared a report, with recommendations, for the House of Delegates of the American Bar Association.[23] In the view of the Natural Resources Section the Common Heritage of Mankind principle, as set forth in Article 136 of the 1980 Draft Convention on the Law of the Sea (Informal Text) and in other provisions of that Text designed to secure the implementation of the principle, would be prejudicial to U.S. mining interests and to the general well-being of the United States.

The Natural Resources Section suggested three risks in accepting the Moon Treaty. First, it was urged that the acceptance of the CHM principle would prejudice the negotiations for a Law of the Sea convention as well as Antarctica. Second, it was argued that acceptance would create substantially increased pressures on the United States "to accept a 'celestial bodies' international regime which would control U.S. space investigations."[24] Thirdly, it was contended that it was readily foreseeable that a claim

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[21]*Ibid.*

[22]*Ibid.*

[23]Report of the Section of Natural Resources With Recommendation to The American Bar Association House of Delegates, in *The Moon Treaty, supra,* note 8, at 82.

[24]*Id.* at 85.

would arise to the effect that "a moratorium on exploration and exploitation of space resources is inherent in the Moon Treaty, pending establishment of machinery to govern such activities under the control of the international regime."[25] Thus, the Section urged that any decision on the Moon Treaty should be delayed because of the risks involved.[26]

4. The 1981 Joint Recommendation of the Two Sections

The views of the two Sections, while not consistent, proved to be reconcilable. In May 1981, following consultations, the Section of International Law, under the chairmanship of Mr. L. L. Brinsmade, and the Section of Natural Resources Law, under the chairmanship of Mr. J. C. Muys, issued a joint recommendation. The two Sections recommended that the ABA House of Delegates adopt a resolution favoring the signature and ratification of the Moon Treaty.[27]

In arriving at their joint recommendation the two Sections had been able to consider highly relevant materials gathered by the Senate Committee on Commerce, Science, and Transportation and the Hearings conducted by the latter's Subcommittee on Science, Technology, and Space.[28] The efforts of the two Sections were eased by focusing on the exploitation of the natural resources of the Moon and other celestial bodies. Section representatives accepted the fact that the CHM principle of the Moon Treaty was to be applicable to the Moon and to its natural resources. In this context the principle was to be separated from that contained in the current Draft Convention on the Law of the Sea (Informal Text). Further, the representatives were in agreement that the issue was sufficiently important for the United States to assert its views as to the ultimate meaning of the agreement, rather than being reactive to such interpretations as might be forthcoming from other States. Thus, certain policy statements were set forth in the preambulatory portion of the joint recommendation.

In an exemplary way the recommendation associated the peaceful uses of the entire space environment with the rule of law and with the national interest of the United States. It accepted the fact that existing international space law authorizes the exploration, use, and exploitation of the space environment. Operating on that correct premise, it was concluded that the United States, and presumably other States equally bound by presently existing international law, possessed "the unilateral right to undertake both scientific exploration and commercial development and use of natural resources found in outer space."[29] The recommendation also took account of the

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[25]*Ibid.*

[26]See, for example, the testimony of L.S. Ratiner and Congressman J. Breaux, in *International Space Activities,* 1979, Hearings before the Subcommittee on Space Science and Applications of the House Committee on Science and Technology, 96th Congress, 1st Session 109 and 142 (1979); See also the testimony of L.S. Ratiner and M.A. Dubs, in *The Moon Treaty, supra* note 8, at 105 and 139.

[27]American Bar Association, Report to the House of Delegates 1 (1981), See Appendix. Following their agreement the two sections referred their recommendation and the attached report to other relevant Sections so that the matter might come before the House of Delegates in August, 1981.

[28]*Supra* notes 7 and 8.

[29]*Supra* note 27, at 1.

legitimate interests of the United States and other members of the world community in the space environment. Included in this ennumeration were voluntary international cooperation, arms control constraints on the use of the space environment consistent with the security of the United States, protection of the natural environment of the area, and the safeguarding of the life and health of persons located in the area.

In order to protect the national interests of the United States, it was recommended that the ratification of the proposed treaty should include express declarations consistent with six principles. When compared with the four principles put forward in 1980 by the Section of International Law as understandings and declarations, it is clear that the 1981 recommendation is in many critical respects the same as the previous one of that Section. The six principles, namely (a) through (f), were arrived at through separating the Section of International Law's first recommendation of 1980 into two parts and the fourth recommendation of 1980 into two parts.

Aside from form the 1981 statement made some modest drafting changes, such as substituting for the term "understanding" in 1980 for the expression "position" in 1981. The 1981 statement in principle (a) substituted the expression "develop and use" for "develop and exploit" as these terms applied to commercial or other purposes. However, the 1981 statement added to the foregoing "and no constraint is accepted by this ratification" to the existing rights of exploration, development, and utilization of Moon and celestial body resources for commercial or other purposes.[30]

Principle (b) of 1981 retained the language of the second sentence of the first understanding of 1980, except that it adopted the expression "existing right" of the United States "to determine unilaterally how it shares the benefits derived from development and use by or under the authority of the United States of natural resources of the Moon or other celestial bodies."[31] Thus, the 1981 version used "development and use" rather than "exploitation."[32]

Principle (c) of 1981 followed the thesis ennunciated in the second understanding of 1980. However, the 1981 version strengthened the preceeding formulation. It made reference to natural resources "extracted or used" by a party to the agreement in lieu of "resources extracted, removed or actually utilized." The 1981 version stated that such resources "are subject to the exclusive control of, and shall be the property of the State Party or other authorized entity responsible for their extraction or use."[33] This replaced the 1980 clause reading "are subject to the exclusive control of, and may be considered as the property of, the State Party or other entity responsible for their extraction, removal or utilization."[34]

Principle (c) of 1981 also contained the sentence reading: "In this context, it is the position of the United States that Articles XII and XV of this Agreement preserve the

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[30]*Supra* note 27, at 2.

[31]*Ibid.*

[32]*Ibid.*

[33]*Ibid.*

[34]*Supra* note 9, at 2.

existing right of States Parties to retain exclusive jurisdiction and control over their facilities, stations and installations on the Moon and other celestial bodies, and that other States Parties are obligated to avoid interference with normal operations of such facilities."[35] This was a modest revision of the third sentence in the third understanding of 1980. The principal differences were that the 1981 joint recommendation indicated that its terms were to be treated as "the position of the United States."[36] This replaced the expression that "the United States notes that."[37] The 1981 statement made reference to the preservation of "the existing right" of the United States. This language had not been used in 1980, although both versions had made reference to Articles 12 and 15 of the treaty.

Principle (d) of 1981, like understanding 3 of 1980, took into account the CHM principle. Substantial changes were made in 1981. The 1981 version did not repeat the 1980 declaration that "the meaning of the term 'common heritage of mankind' is to be based on the provisions of this Agreement, and not on the use or interpretation of that term in any other context."[38] Thus, the non-reference in 1981 to the exact terms of the agreement can be explained as avoiding the obvious.

Principle (d) of 1981 has advanced a new and very restrictive view as to the substantive content of the CHM principle. Undoubtedly this new approach will add complications to an already complex situation. This can be best portrayed by reciting the terms of the 1980 understanding. In 1980 the Section of International law suggested as an understanding that "Recognition by the United States that the Moon and its natural resources are the common heritage of all mankind constitutes recognition (i) that all States have equal rights to explore and use the Moon and its natural resources, and (ii) that no State or other entity has an exclusive right of ownership, property or appropriation over the Moon, over any area of the surface or subsurface of the Moon, or over its natural resources in place."[39] This language, which was consistent with the provisions of the Moon Treaty and with its negotiating history, called attention to some of the consequences of the CHM principle. The proposed understanding of the Section of International Law signaled the foregoing characteristics of the principle as subjects of special recognition, but did not endeavor to restrict the CHM principle only to the identified characteristics.

The 1981 proposed principles of the two sections drastically modified the original approach of the Section of International Law. The joint statement accepted the previously identified substantive aspects of the CHM principle, but suggested that recognition by the United States that the Moon and its natural resources are the CHM would be "limited" to the specified illustrations.[40] Further, the joint statement rejected

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[35]*Supra* note 27, at 2.

[36]*Ibid.*

[37]*Supra* note 9, at 2.

[38]*Ibid.*

[39]*Ibid.*

[40]*Supra* note 27, at 2.

the reference made by the Section of International Law to "in place" natural resources. The joint statement substituted for the "in place" qualification of natural resources the following: "natural resources which have not been, or are not actually in the process of being, extracted or used by actual development activities on the Moon."[41]

The proposed principle (d) was a major departure from the terms of Article 11 of the Moon Treaty. In rejecting the "in place" terminology of Article 11, par. 3 the proposed principle would not only repudiate a major contribution made by the United States in the drafting of the treaty. It would also introduce terminology, namely, "natural resources which have not been, or are not actually in the process of being, extracted or used by actual development activities on the Moon,"[42] which possesses no known pedigree and undoubtedly would offer no guidance to whatever goals were intended to be served by such language. Although the joint statement contains a section entitled "Report," which deals with the indicated principles, the report offers no explanation or interpretation of the quoted language. Presumably the foregoing language was introduced because, according to the joint statement, "the negotiating record shows that some countries take the term 'common heritage' to mean that they have some form of right to control or extract benefits from the activities of countries which do undertake the burdens and risks of the exploration and use of outer space."[43] Apparently operating on this premise, the joint statement called attention to the possible impact of such expectations on the early exploitative activities of those States possessing such capabilities.

This outlook appears to have been based on a fundamental misunderstanding of the terms of the Moon Treaty and the record made during its negotiation. Factually it is clear that at the present time the international legal regime for such natural resources is one of *res communis.* This means that there is no present limitation on the free and equal explanation, use, and exploration, of such resources. Only at a future date when it has been demonstrated that there are valid prospects for large-scale exploitation will it be necessary to proceed, according to Article 11, par. 5 of the agreement, to put into place the international legal regime that would secure the practical implementation of the CHM principle. In arriving at such a legal regime, and in putting the CHM principle into effect, it will be necessary to achieve the goal, among others specified in Article 11, par. 7 of "an equitable sharing by all States Parties in the benefits derived from those resources, whereby the interests and needs of the developing countries, as well as the efforts of those countries which have contributed either directly or indirectly to the exploration of the Moon, shall be given special consideration."[44] This heavily bargained provision contains the specific formula for the future sharing of benefits on an equitable, not equal, basis.[45] The presence of this formula will impose well-understood

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[41]*Ibid.*

[42]*Ibid.*

[43]*Id.* at 5.

[44]Article 11, par. 7 (d) of the Moon Treaty, *Supra,* note 1.

[45]C. Q. Christol, *supra,* note 2, at 473.

limitations on claims which might possibly be put forward by non-resource States having an interest in either controlling or extracting benefits from the operational achievements of countries such as the United States. It also appeared from the language of the Report of the two Sections that a concern continued whether the specific language of Article 11, par. 1 of the agreement had conclusively established a distinction between CHM regimes for the space environment and for the ocean. This lingering doubt is regrettable, since Article 11, par. 1 in clear and uncertain terms, as reflected by overwhelming evidence during the recorded negotiations, separated the CHM principles applicable to the Moon and its natural resources from those of the ocean. Further, the joint statement expressed concern over the possibility of confusing the "implementation procedures" of the two agreements.[46] Again, this observation does not accurately reflect the fact that the 1980 Draft Convention on the Law of the Sea (Informal Text) makes detailed references to such procedures, whereas the Moon Treaty merely prescribes that at some future date a conference may be assembled to spell out the appropriate legal regime and appropriate procedures.[47]

Principle (e) of the joint recommendation borrowed heavily on the fourth understanding of the Section of International Law. Both stressed that no moratorium was intended or required by the agreement. The International Law Section applied this to "exploitation," while the joint recommendation stated that there should be no moratorium "on the commercial or other exploration, development and use of the natural resources of the Moon or other celestial body."[48] The joint statement concentrated more heavily on the development and use of the natural resources of the Moon and other celestial bodies than had the International Law Section. The joint statement, consistently with the International Law Section's 1980 understanding, acknowledged the duty of parties to act in a manner compatible with Articles 6 (2) and 11(7). The joint statement followed the understanding of the International Law Section in prescribing compatible conduct. It now reads: "However, the United States reserves to itself the right and authority to determine the standards for such compatibility unless and until the United States becomes a party to a future resources regime."[49] The acceptance of the terms of Article 11, par. 7 in the foregoing principle will necessitate a further clarification of the joint statement. The apparently unqualified acceptance of all of the CHM criteria identified in that paragraph will have to be examined for consistency in the light of the limited recognition set out in principle (d) as mentioned above.

The final joint principle (f) restated in a slightly more restrictive fashion the 1980 understanding put forward by the Section of International Law. As agreed to in 1981, the principle reads: "Acceptance by the United States of the obligation to join in good faith negotiation for creation of a future resources regime in no way constitutes acceptance of any particular provisions or proposed provisions which may be included in

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[46]*Supra* note 27, at 6.

[47]*Supra* note 3, at 139.

[48]*Supra* note 27, at 3.

[49]*Supra* note 27, at 3.

an agreement creating and controlling such a regime; nor does it constitute any obligation or commitment to become a Party to such a regime regardless of the contents of any such agreement."[50]

The Section of International Law had called for an "exploitation" regime. It had not made reference to "proposed provisions." The final principle by referring to a "future resources regime" identified the fact that the significant debate over the terms of the proposed treaty had related to the use of natural resources. Thus, the joint report of the two sections had focused on the issues raised by the provisions of the agreement dealing with that subject.

5. Conclusion

In appraising the product of the joint statement it is evident that both broad and specific considerations must be weighed. At the present time in the United States, as well as in some other countries, there is an increasing tendency to attach reservations or understandings to proposed international agreements. This tendency weakens the international legislative process in the sense that the end product is not allowed to become a consistent and coherent whole. Special interests that have not been able to prevail at the international bargaining table seek to advance their self-serving interests in the legislative halls of nations. Such understandings may produce a victory for manipulative skills rather than for the national interest. The adoption of understandings may be precedent setting. Many States may wish to reserve certain determinations to their unilateral judgments. In highly complex international agreements the prospects for reservations, particularly when identified with influential, single-issue constituencies, may result in an almost unfathomable network of international agreements. Thus, in principle, from the strategic and political approach to general international order, it is desirable to keep special reservations, interpretations, and understandings to a minimum.

From the legal point of view it is well recognized that if a State files an "understanding," when it ratifies an international agreement, that this constitutes an interpretation of treaty terms. A "declaration" constitutes a national statement of policy. When such qualifications relate to the international application of the agreement, such formal statements become binding in international law between the United States and those States which either accept or do not object to the indicated national position. This has been applied to the proposed Moon Treaty, as follows: "So, for example, any U.S. understandings on the meaning of 'common heritage,' 'equitable sharing,' 'in place,' the existence (or not) of a moratorium, or any other subject related to the international application of the Moon Treaty, will be legally binding as between the United States and parties who accept such understandings or who do not object with a stated intention of preventing the treaty relationship with the United States from entering into force."[51]

In the light of the legal consequences flowing from declarations and understandings attached by States to international agreements, it is clear that their

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[50] *Ibid.*

[51] A. W. Rovine, Letter to R. Stowe, in *The Moon Treaty*, *supra* note 8, at 82.

terms should both serve the national interest and be at least as clearly drafted as the terms of the basic international agreement to which they are to be appended. To the extent that the separate proposals of the Section of International Law and the Section of Natural Resources Law and the joint proposal of the two Sections merely reconfirm the express terms of the Moon Treaty, or can be legitimately supported from the negotiating history of the agreement, these proposals are acceptable. They may be redundant, but in the interest of abundant caution, they are not objectionable. However, the terms of the proposed principle (d) of the May 1981 Recommendation of the two Sections to the House of Delegates constitutes, in its efforts to give to the CHM principle a limited meaning, a rewriting of the terms of Article 11 of the 1979 treaty. The Report of the two Sections does not provide a satisfactory explanation for endeavoring to effect this major change. It did not provide a substantive assessment of the meaning to be attributed to its terms.

It has not been demonstrated that the national interest of the United States would be served by the proposed principle. The principle contains ambiguities. No reference point was provided whereby the meaning of the terms nor the special interests sought to be served could be validated. Further, it was inconsistent with the terms of the principle (e), which accepted the fact that signatories will be obligated to conform their conduct to the terms of the agreement, and in particular to the critical terms of Article 11, par. 7. Finally, from the perspective both of the development of the rule of law in international relations and of the legitimate interests of the United States, a considerable amount of caution is required in the formulation and use of understandings and declarations to international agreements. Perhaps the Association's House of Delegates will be able to obtain a clarification of the joint recommendation received by it from the two Sections, and in particular the meaning to be attributed to proposed principle (d). In any event it is to be expected that the members of the Senate Committee on Foreign Relations will take into due account any communication it may receive from the American Bar Association on the subject.

Although this analysis of the joint efforts of the two Sections to advance the national interest, as perceived by their various constituencies, has raised some questions concerning the validity of the indicated perceptions, one fact remains. The two Sections, subject to their respective outlooks, now support the signature of the Moon Treaty and its ultimate ratification. Unless the United States becomes a party to the agreement, it will not be a participant in the negotiation of the future international legal regime and appropriate procedures respecting the disposition of the natural resources of the Moon and other celestial bodies.

APPENDIX

AMERICAN BAR ASSOCIATION REPORT TO THE HOUSE OF DELEGATES (May 1981)

RECOMMENDATION

The American Bar Association Section of International Law and Section of Natural Resources Law recommend the following resolution for adoption by the House of Delegates of the American Bar Association:

BE IT RESOLVED that the American Bar Association

Believes that the content of international law governing the peaceful uses of outer space, including the Moon and other celestial bodies, is a matter of substantial importance to the national interests of the United States;

Believes that the United States should preserve its rights under existing international law to undertake national exploration and use of outer space, including the unilateral right to undertake both scientific exploration and commercial development and use of natural resources found in outer space; and

Believes that encouragement of voluntary international cooperation in outer space, arms control constraints on the use of outer space consistent with the security of the United States, protection of the environment in outer space, and safeguarding of life and health of persons in outer space, are legitimate interests of the United States and of the international community.

BE IT ALSO RESOLVED, therefore,

That the American Bar Association favors the signature and ratification by the United States of the "Agreement Governing the Activities of States on the Moon and Other Celestial Bodies" on the explicit condition that the United States Signature and Instrument of Ratification be subject to and include express Declarations consistent with the following principles:

"(a) It is the position of the United States that no provision in this Agreement constrains the existing right of governmental or authorized non-governmental entities to explore and use the resources of the Moon or other celestial body, including the right to develop and use these resources for commercial or other purposes, and no such constraint is accepted by this ratification.

"(b) It is the position of the United States that nothing in this Agreement in any way diminishes or alters the existing right of the United States to determine unilaterally how it shares the benefits derived from development and use by or under the authority of the United States of natural resources of the Moon or other celestial bodies;

"(c) Natural resources extracted or used by or under the authority of a State Party to this Agreement are subject to the exclusive control of, and shall be the property of the State Party or other authorized entity responsible for their extraction or use. In this context, it is the position of the United States that Articles XII and XV of this Agreement preserve the existing right of States Parties to retain exclusive jurisdiction and control over their facilities, stations and installations on the Moon and other celestial bodies, and that other States Parties are obligated to avoid interference with normal operations of such facilities;

"(d) Recognition by the United States that the Moon and its natural resources are the common heritage of all mankind is limited to recognition (i) that all States have the rights to explore and use the Moon and its natural resources, and (ii) that no State or other entity has an exclusive right of ownership over the Moon, over any area of the surface or subsurface of the Moon, or over its natural resources which have not been, or are not actually in the process of being, extracted or used by actual development activities on the Moon.

"(e) It is the position of the United States that no moratorium on the commercial or other exploration, development and use of the natural resources of the Moon or other celestial body is intended or required by this Agreement. The United States recognizes that, in the development and use of natural resources on the Moon, States Parties to this Agreement are obligated to act in a manner compatible with the provisions of Article VI (2) and the purposes specified in Article XI (7). However, the United States reserves to itself the right and authority to determine the standards for such compatibility unless and until the United States becomes a party to a future resources regime.

"(f) Acceptance by the United States of the obligation to join in good faith negotiation for creation of a future resources regime in no way constitutes acceptance of any particular provisions or proposed provisions which may be included in an agreement creating and controlling such a regime; nor does it constitute any obligation or commitment to become a Party to such a regime regardless of the contents of any such agreement."